

IN THE UNITED STATES DISTRICT COURT  
FOR THE DISTRICT OF COLORADO  
Judge William J. Martínez

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Courtroom Deputy: Deborah Hansen  
Court Reporter: Gwen Daniel

Date: January 15, 2013

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Civil Case No. 09-cv-02434-WJM-MJW

Counsel:

CINDY H. SANDOVAL,  
  
Plaintiff,

Elwyn F. Schaefer  
Sara A. Green

v.

ANNA MARTINEZ-BARNISH,  
  
Defendant.

Juan G. Villasenor  
Jamie Mendelson

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COURTROOM MINUTES

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JURY TRIAL - DAY TWO

08:52 a.m. Court in Session

Also present: Reesha Trznadel, Esq. (United States Department of Energy)

**DEFENDANT'S SECOND WITNESS ANGELA SIGALA**

08:52 Direct (by Ms. Mendelson)

08:56 Cross (by Mr. Schaefer)

**DEFENDANT'S THIRD WITNESS PAUL LANGLEY**

08:57 Direct (by Mr. Villasenor)

(No cross examination)

09:01 Defendant Rests.

**PLAINTIFF'S REBUTTAL WITNESS CINDY H. SANDOVAL**

09:01 Direct (by Mr. Schaefer)

09:02 Cross (by Mr. Villasenor)

09:05 Jury excused until 10:00 a.m.

09:06 Defendant renews her motion under Rule 50 for judgment as a matter of law with respect to all three claims for relief as well as her claim for punitive damages (by Mr. Villasenor).

09:14 Response (by Mr. Schaefer)

Court enters findings and conclusions on the record.

**ORDERED: The defendant's renewed Rule 50 (a) (1) motion as to plaintiff's claim for punitive damages is GRANTED. The motion in all other respects is DENIED.**

09:26 Court in Recess

09:50 Court in Session - without jury

Jury Instruction Conference

09:58 Court in Recess

10:10 Court in Session - jury present

Court instructs jury on the law.

10:45 Closing Argument (by Mr. Schaefer)

10:57 Closing Argument (by Ms. Mendelson)

11:26 Rebuttal Argument (by Mr. Schaefer)

11:30 Jury Bailiff sworn

11:35 Court in Recess

01:11 Court in Session

Court's comments

The Court received a note that the jury has reached a Verdict.

01:11 Jury Present

The Court reads aloud the Verdict.

01:14 The jury is excused after the Court thanks them for their service.

01:15 p.m. Court in Recess  
Trial concluded.  
Time: Two hours and eleven minutes

Clerk's Note:

"Pursuant to General Order 2008-03 the original Jury Verdict has been filed conventionally by delivery to the clerk's office. A representation of the Jury Verdict is attached to the court minutes."